

Shiv Mohan v. State of U.P. and others

Allahabad High Court · Division Bench · 15 April 2025 · 2025:AHC:54606-DB · Writ-C No. 11048 of 2025 · **Writ disposed of; liberty to apply under Clause 6.5.**

HEADNOTE

A writ challenging a theft-related electricity bill and seeking restoration is not decided on merits. Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an effective alternative remedy for disputing the demanded amount. The petition is disposed of with liberty to apply under Clause 6.5; if filed within two weeks, the authority shall consider and dispose of it within six weeks of filing.

FACTUAL SUMMARY

Shiv Mohan challenged a notice dated 10 March 2025 of the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Agra, and sought assessment of his electricity bill and restoration of supply. The dispute concerned electricity theft and the correctness of the demanded bill. Respondents submitted that Clause 6.5 of the U.P. Electricity Supply Code, 2005 was an effective alternative remedy. Counsel for the petitioner did not dispute that.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy for billing dispute

HOLDING

Where the consumer disputes the correctness of a theft-related electricity bill and seeks assessment and restoration by writ, Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an effective alternative remedy. The writ is disposed of with liberty to apply under Clause 6.5; if the application is filed within two weeks, the respondent authority shall consider and dispose of it within six weeks of filing. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging a theft-related electricity bill and seeking restoration is not decided on merits. Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an effective alternative remedy for disputing the demanded amount.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMANDED BILL, THE ELECTRICITY-THEFT ALLEGATION, AND RESTORATION OF SUPPLY

Not examined on merits; petitioner relegated to a time-bound Clause 6.5 application.